

**Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO**

REENGROSSED

*This Version Includes All Amendments
Adopted in the House of Introduction*

LLS NO. 26-0771.01 Christopher McMichael x4775

HOUSE BILL 26-1224

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A BILL FOR AN ACT

101 **CONCERNING FINANCIAL PROTECTIONS FOR MOBILE HOME PARK**
102 **RESIDENTS.**

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

The bill establishes and clarifies financial protections for mobile home park residents. A landlord of a mobile home park is required to notify residents that the landlord is temporarily prohibited from increasing rent. Under current law, a landlord is required to send notice to residents when the landlord intends to sell the mobile home park. The bill clarifies what information must be included in the notice that the landlord sends

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

HOUSE
3rd Reading Unamended
April 16, 2026

HOUSE
Amended 2nd Reading
April 14, 2026

to residents of the park. The notice must include financial and maintenance information related to the rental and operation of the mobile home park and information related to the buyer's offer to purchase the mobile home park. The bill requires the landlord and any potential buyer to conduct the sale of the mobile home park at arms-length and in good faith. The bill establishes certain parameters related to the registration fee that must be paid by a landlord of a mobile home park and limits the amount that the landlord may charge each resident to cover the registration fee at \$17.

Be it enacted by the General Assembly of the State of Colorado:

SECTION 1. In Colorado Revised Statutes, 38-12-201.5, **amend** (6) and (8) as follows:

38-12-201.5. Definitions.

As used in this part 2 and in parts 11 and 14 of this article 12, unless the context otherwise requires:

(6) (a) (I) "Mobile home park" or "park" means a parcel of land used for the accommodation of five or more mobile homes for which the management or landlord has a rental agreement ~~with a tenant~~ for a mobile home or lot or is receiving rent payments for a mobile home or lot from a ~~tenant~~ RESIDENT or a third party.

(II) "MOBILE HOME PARK" OR "PARK" INCLUDES PARCELS OF LAND WHERE THE MANAGEMENT OR LANDLORD OWNS ALL OF THE MOBILE HOMES IN THE MOBILE HOME PARK.

(III) "Mobile home park" OR "PARK" does not include mobile home subdivisions or property zoned for manufactured home subdivisions.

(b) For purposes of ~~this definition~~ SUBSECTION (6)(a) OF THIS SECTION, the parcel of land comprising the mobile home park does not need to be contiguous, but must be in the same neighborhood as

1 determined by the division.

2 (8) "Premises" means a mobile home park and existing facilities
3 and appurtenances of the park, including furniture and utilities where
4 applicable, and grounds, areas, and existing facilities held out for the use
5 of home owners OR RESIDENTS generally or the use of which is promised
6 to home owners OR RESIDENTS.

7 **SECTION 2.** In Colorado Revised Statutes, 38-12-203, **amend**
8 (1)(a) as follows:

9 **38-12-203. Reasons for termination.**

10 (1) The management of a mobile home park may terminate a
11 tenancy only for one or more of the following reasons:

12 (a) Except in the case of a home owner who cures a
13 noncompliance as described in section 38-12-202 (3), failure of the home
14 owner to comply with local ordinances and state laws and rules relating
15 to mobile homes and mobile home lots. A LANDLORD MAY PURSUE THE
16 TERMINATION OF A TENANCY ON THESE GROUNDS ONLY IF A LOCAL
17 GOVERNMENT, THE STATE, OR AN AGENCY OR DIVISION OF A LOCAL
18 GOVERNMENT OR THE STATE HAS ISSUED A FINAL ORDER FINDING THAT A
19 VIOLATION OF A LOCAL ORDINANCE OR A STATE LAW OR RULE RELATED TO
20 MOBILE HOMES AND MOBILE HOME LOTS HAS OCCURRED.

21 **SECTION 3.** In Colorado Revised Statutes, 38-12-204, **add** (4.5)
22 as follows:

23 **38-12-204. Nonpayment of rent - notice required for rent**
24 **increase - limitation on rent increases - notice of rent increase**
25 **prohibition - definition.**

26 (4.5) A LANDLORD THAT IS TEMPORARILY PROHIBITED FROM
27 INCREASING RENT OR ISSUING A NOTICE OF RENT INCREASE PURSUANT TO

1 SUBSECTION (4) OF THIS SECTION SHALL NOTIFY ALL RESIDENTS THAT
2 THEIR RENT SHALL NOT BE INCREASED WHILE THE PROHIBITION IS
3 EFFECTIVE AND THE REASON FOR THE TEMPORARY PROHIBITION. THE
4 LANDLORD SHALL PROVIDE THE NOTICE IN WRITING, IN ACCORDANCE WITH
5 SECTION 38-12-212.9, AND WITHIN FOURTEEN DAYS AFTER THE DATE THE
6 LANDLORD IS NOTIFIED THAT THEY ARE TEMPORARILY PROHIBITED FROM
7 RAISING RENT.

8 **SECTION 4.** In Colorado Revised Statutes, 38-12-217, **amend**
9 (2)(a) introductory portion, (2)(a)(II), (3), (5)(a), (5)(b), (6)(b), and (13);
10 and **add** (14.5) as follows:

11 **38-12-217. Notice of change of use - notice of sale or closure of**
12 **park - opportunity for home owners to purchase - procedures -**
13 **exemptions - enforcement - private right of action - definitions.**

14 (2) **Notice - requirements.**

15 (a) To provide notice as required by subsection (1)(a) or (1)(b) of
16 this section, ~~the~~ A landlord shall mail the notice in both English and
17 Spanish by certified mail to:

18 (II) The CLERK OF THE municipality or, if the park is in an
19 unincorporated area, the COUNTY CLERK OF THE county within which the
20 park is located;

21 (3) **Contents of notice.**

22 (a) EXCEPT AS PROVIDED IN SUBSECTION (3)(f) OF THIS SECTION,
23 the notice given pursuant to subsection (1)(a) of this section must include
24 notice of home owners' rights and remedies under this section.

25 (b) If the triggering event involves a potential sale, the notice must
26 also include:

27 (I) A description of the property to be purchased;

1 (II) The price, terms, and conditions of an acceptable offer the
2 landlord has received to sell the mobile home park or the price or terms
3 and conditions for which the landlord intends to sell the park; and

4 (III) A STATEMENT THAT THE LANDLORD MUST PROVIDE THE
5 FOLLOWING INFORMATION AND DOCUMENTATION THAT IS IN THE
6 LANDLORD'S POSSESSION OR CONTROL TO A HOME OWNER UPON REQUEST:

7 (A) AN EXPLANATION AND DOCUMENTATION OF THE BASIS FOR
8 THE PURCHASE PRICE, SUCH AS AGGREGATE RENTAL DATA, RENT
9 PROJECTIONS, RECENT APPRAISALS OF THE PROPERTY, OR FORMULAS THAT
10 USE NONPUBLIC MARKET DATA;

11 (B) DISCLOSURE OF THE AGE OF MAJOR INFRASTRUCTURE IN THE
12 MOBILE HOME PARK, INCLUDING THE PARK'S WATER LINES, SEWER LINES,
13 WASTEWATER TREATMENT EQUIPMENT, DRINKING WATER TREATMENT
14 EQUIPMENT, PLUMBING, AND ELECTRICAL EQUIPMENT AND ELECTRICAL
15 INFRASTRUCTURE;

16 (C) DOCUMENTATION OF INFRASTRUCTURE INSPECTIONS,
17 MAINTENANCE, AND REPAIR SERVICES THAT HAVE OCCURRED IN THE
18 MOBILE HOME PARK IN THE PREVIOUS THREE YEARS;

19 (D) THE MOST UP-TO-DATE RENT ROLL AND ANY DOCUMENTATION,
20 WITH PERSONAL IDENTIFYING INFORMATION REDACTED, THAT SHOWS
21 CURRENT RENTS, CHARGES, OUTSTANDING BALANCES, INFORMATION
22 REGARDING LANDLORD OWNERSHIP OF ANY MOBILE HOMES IN THE MOBILE
23 HOME PARK, AND THE CURRENT VACANCY RATE OF THE MOBILE HOME
24 PARK; AND

25 (E) OPERATING EXPENSES AND INCOME FOR THE MOBILE PARK FOR
26 THE PREVIOUS THREE YEARS ON A YEAR-BY-YEAR BASIS WITH SPECIFIC
27 LINE ITEMS FOR RENTS; FEES; ANY ELECTRIC, GAS, WATER, SEWER, OR

1 SOLID WASTE DISPOSAL UTILITY BILLS; ANY OTHER RECURRING BILLS; AND
2 ANY INVOICES OVER FIVE HUNDRED DOLLARS; AND

3 (IV) Any other terms or conditions which, if not met, would be
4 sufficient grounds, in the landlord's discretion, to reject an offer from a
5 group of home owners or their assignees.

6 (c) The price, terms, and conditions stated in the notice must be
7 universal and applicable to all potential buyers and must not be specific
8 to and prohibitive of a group or association of home owners or their
9 assignees making a successful offer to purchase the park.

10 (d) (I) IF THE POTENTIAL SALE IS A PORTFOLIO SALE THAT
11 INCLUDES REAL PROPERTY OR STRUCTURES NOT LOCATED IN THE MOBILE
12 HOME PARK IN ADDITION TO THE MOBILE HOME PARK, THE NOTICE MUST
13 INCLUDE ANY CHANGE OR DISCOUNT IN THE PRICE, TERMS, OR CONDITIONS
14 OF A PROPOSED SALE THAT INCLUDES MORE THAN ONE PIECE OF REAL
15 PROPERTY OR STRUCTURES NOT LOCATED IN THE MOBILE HOME PARK.

16 (II) ANY CHANGE OR DISCOUNT DISCLOSED PURSUANT TO
17 SUBSECTION (3)(d)(I) OF THIS SECTION MUST ALSO BE MADE AVAILABLE
18 TO HOME OWNERS OF THE MOBILE HOME PARK ON THE SAME TERMS AND
19 WITH THE SAME PROPORTIONATE DISCOUNT, EVEN IF THE HOME OWNERS
20 SUBMIT AN OFFER TO PURCHASE ONLY THE MOBILE HOME PARK.

21 (III) FOR THE PURPOSE OF DETERMINING THE PROPORTIONATE
22 DISCOUNT REQUIRED BY SUBSECTION (3)(d)(II) OF THIS SECTION, THE
23 TOTAL DISCOUNT THAT APPLIES TO THE PORTFOLIO SALE REPRESENTED AS
24 A PERCENTAGE MUST BE APPLIED PRO RATA TO THE PRICE OF ANY
25 INDIVIDUAL MOBILE HOME PARK INVOLVED IN THE PORTFOLIO SALE.

26 (e) The information regarding the proposed sale and the price,
27 terms, and conditions of an acceptable offer may be shared for the

1 purposes of evaluating or obtaining financing for the prospective
2 transaction, but all persons ~~who~~ THAT receive the information shall
3 otherwise keep it confidential if the landlord or the landlord's agent so
4 requests.

5 [REDACTED]
6 (f) IF A TRIGGERING EVENT DESCRIBED IN SUBSECTION
7 (1)(a)(II)(H) OF THIS SECTION OCCURS, THE NOTICE PROVIDED BY THE
8 LANDLORD PURSUANT TO SECTIONS 38-12-217 (2) AND (3) MUST ALSO
9 DISCLOSE IF A PURCHASE AND SALE AGREEMENT HAS BEEN EXECUTED AND
10 INCLUDE A STATEMENT THAT A LANDLORD MUST PROVIDE A COPY OF THE
11 PURCHASE AND SALE AGREEMENT TO A HOME OWNER UPON REQUEST
12 PURSUANT TO SECTION 38-12-217 (5)(a)(I)(B). [REDACTED] [REDACTED]

13 (5) **Landlord's duty to consider offer.** A landlord that has given
14 notice as required by subsection (1)(a) of this section shall:

15 (a) (I) Provide documents, data, and other information in response
16 to reasonable requests for information from a group or association of
17 home owners or their assignees participating in the opportunity to
18 purchase that would enable them to prepare an offer, WHICH DOCUMENTS,
19 DATA, OR INFORMATION MUST INCLUDE:

20 (A) THE INFORMATION, DOCUMENTATION, AND DATA DESCRIBED
21 IN SUBSECTION (3)(b)(III) OF THIS SECTION;

22 (B) AN UNREDACTED COPY OF THE PURCHASE AND SALE
23 AGREEMENT; AND

24 (C) ANY OTHER DUE DILIGENCE INFORMATION. [REDACTED]

25 (II) The documents, data, and other information provided
26 PURSUANT TO SUBSECTION (5)(a)(I) OF THIS SECTION may be shared for
27 the purposes of evaluating or obtaining financing for the prospective

1 transaction, but ~~all persons who receive~~ A PERSON THAT RECEIVES the
2 information shall otherwise keep it confidential if the landlord or the
3 landlord's agent so requests.

4 (III) A LANDLORD SHALL PROVIDE THE DOCUMENTS, DATA, AND
5 OTHER INFORMATION DESCRIBED IN SUBSECTION (5)(a)(I) OF THIS SECTION
6 WITHIN SEVEN CALENDAR DAYS AFTER THE LANDLORD RECEIVES THE
7 REQUEST FOR INFORMATION.

8 (b) (I) Negotiate in good faith with a group or association of home
9 owners or their assignees.

10 (II) For purposes of this subsection (5)(b), negotiating in good
11 faith includes, but is not limited to:

12 (A) Evaluating an offer to purchase from a group of home owners
13 or their assignees without consideration of the time period for closing; the
14 type of financing or payment method; whether ~~or not~~ the offer is
15 contingent on financing or payment method; ~~or whether or not~~ the offer
16 is contingent on INSPECTIONS, financing, an appraisal, ~~or~~ title work, OR
17 THE DUE DILIGENCE PERIOD REQUIRED BY THE HOME OWNERS OR THEIR
18 LENDERS OR DONORS; and

19 (B) Providing a written response within seven calendar days ~~of~~
20 AFTER receiving an offer from a group of home owners or their assignees.

21 (II.5) The written response DESCRIBED IN SUBSECTION (5)(b)(II)
22 OF THIS SECTION must accept or reject the offer and, if the offer is
23 rejected, must state:

24 (A) The current price, terms, or conditions of an acceptable offer
25 that the landlord has received to sell the mobile home park if the price,
26 terms, or conditions have changed since the landlord gave notice to the
27 home owners pursuant to subsection (3) of this section; and

1 (B) Why the landlord is rejecting the offer from a group of home
2 owners and what terms and conditions must be included in a subsequent
3 offer for the landlord to potentially accept it.

4 (III) The price, terms, and conditions of an acceptable offer stated
5 in the response must be universal and applicable to all potential buyers
6 and must not be specific to and prohibitive of a group or association of
7 home owners or their assignees making a successful offer to purchase the
8 park.

9 **(6) Expiration of opportunity to purchase.**

10 (b) A landlord shall give a group or association of home owners
11 or their assignees an additional one hundred twenty days after the
12 one-hundred-twenty-day period provided by subsection (4)(a) of this
13 section to close on the purchase of the mobile home park. THE
14 ONE-HUNDRED-TWENTY-DAY PERIOD TO CLOSE MUST INCLUDE AT LEAST
15 A NINETY-DAY DUE DILIGENCE PERIOD.

16 (13) (a) To qualify for an exemption under subsection (12) of this
17 section, a transaction must not be made in bad faith, must be made for a
18 legitimate business purpose or a legitimate familial purpose consistent
19 with the exemptions listed in subsection (12) of this section, and must not
20 be made for the primary purpose of avoiding the opportunity-to-purchase
21 provisions set forth in this section.

22 (b) (I) EXCEPT FOR A SALE OR TRANSFER DESCRIBED IN
23 SUBSECTION (12) OF THIS SECTION AND A SALE CONDUCTED AS A FEDERAL
24 INTERNAL REVENUE SERVICE SECTION 1031 EXCHANGE, A PROPOSED SALE
25 OF A MOBILE HOME PARK MUST BE CONDUCTED AS AN ARMS-LENGTH
26 TRANSACTION WITH THE LANDLORD AND BUYER ACTING INDEPENDENTLY
27 AND IN GOOD FAITH.

1 (II) THE LANDLORD OF A MOBILE HOME PARK SHALL NOT COLLUDE
2 WITH A POTENTIAL BUYER, OR ENGAGE IN OTHER ANTICOMPETITIVE
3 PRACTICES, FOR THE PRIMARY PURPOSE OF INFLATING THE LISTING OR
4 PURCHASE PRICE OF THE MOBILE HOME PARK ABOVE THE PARK'S FAIR
5 MARKET VALUE OR OTHERWISE ENGAGING IN PRACTICES TO PROHIBIT THE
6 PURCHASE OF THE MOBILE HOME PARK BY A GROUP OR ASSOCIATION OF
7 HOME OWNERS.

8 (14.5) A LANDLORD MUST PROVIDE THE FOLLOWING INFORMATION
9 TO THE DIVISION; THE ATTORNEY GENERAL; A LOCAL GOVERNMENT; OR
10 ANY GROUP OR ASSOCIATION OF HOME OWNERS, OR THEIR ASSIGNEES,
11 THAT HAS OBTAINED THE APPROVAL OF FIFTY-ONE PERCENT OR MORE OF
12 THE HOMEOWNERS IN THE PARK WITHIN FOURTEEN CALENDAR DAYS AFTER
13 RECEIVING A WRITTEN REQUEST:

14 (a) THE INFORMATION REQUIRED BY SUBSECTION (3) OF THIS
15 SECTION;

16 (b) A DISCLOSURE OF ANY DIRECTORS, MEMBERS, OR MANAGERS
17 SHARED BETWEEN THE LANDLORD AND THE POTENTIAL BUYER OF THE
18 MOBILE HOME PARK OR ANY OF THE BUYER'S INVESTORS OR AFFILIATES;

19 (c) A DISCLOSURE OF ALL BENEFICIAL OWNERS OF THE LANDLORD
20 AND THE POTENTIAL BUYER;

21 (d) A DISCLOSURE OF ANY LEGAL ENTITIES FORMED OR AMENDED
22 FOR THE PURPOSE OF THE TRANSACTION AND THE OPERATING AGREEMENT,
23 ARTICLES OF INCORPORATION, OR BYLAWS OF ANY SUCH LEGAL ENTITIES;

24 (e) THE DISCLOSURE OF ANY AGREEMENT OTHER THAN THE
25 PURCHASE AND SALE AGREEMENT BETWEEN THE LANDLORD AND THE
26 POTENTIAL BUYER OR THE BUYER'S INVESTORS OR AFFILIATES, INCLUDING
27 ANY AGREEMENT THAT:

1 (I) RELATES TO THE TRANSACTION TO SELL OR PURCHASE THE
2 MOBILE HOME PARK;

3 (II) AFFECTS THE PRICE OR TERMS OF THE TRANSACTION TO SELL
4 OR PURCHASE THE MOBILE HOME PARK, INCLUDING ANY AGREEMENT IN A
5 SEPARATE TRANSACTION THAT INCLUDES A REDUCTION IN PRICE, OFFSET,
6 OR DEDUCTION RELATED TO THE SALE OR PURCHASE OF THE MOBILE HOME
7 PARK; OR

8 (III) RELATES TO THE DISTRIBUTION OF PROCEEDS FROM THE SALE
9 OF THE MOBILE HOME PARK OR OTHER ASSETS OR EQUITY INTERESTS;

10 (f) INFORMATION REGARDING THE BUYER'S SOURCE OF FINANCING,
11 INCLUDING SPECIFIC LENDERS, IF APPLICABLE, AND WHETHER THE
12 LANDLORD IS PROVIDING ANY FINANCING DIRECTLY OR THROUGH A
13 PARTNERSHIP AGREEMENT WITH THE BUYER;

14 (g) WHETHER THE SALE OF THE MOBILE HOME PARK IS PART OF AN
15 ASSET, STOCK, OR OTHER EQUITY PURCHASE AND, IF SO, AN EXPLANATION
16 OF HOW THE PURCHASE PRICE OF THE MOBILE HOME PARK WAS
17 CALCULATED BASED ON THE PRICE OF THE EQUITIES INVOLVED AND ANY
18 DOCUMENTATION TO SUPPORT THE CALCULATION OF THE PURCHASE PRICE;
19 AND

20 (h) AN UNREDACTED COPY OF THE PURCHASE AND SALE
21 AGREEMENT.

22 **SECTION 5.** In Colorado Revised Statutes, 38-12-1106, **amend**
23 (8) as follows:

24 **38-12-1106. Registration of mobile home parks - process - fees.**

25 (8) (a) The division shall establish by rule a fee that each landlord
26 shall pay to the division as an annual registration fee for each mobile
27 home independently owned on rented land within the landlord's mobile

1 home park.

2 (b) ~~On and after July 1, 2024,~~ The division may adjust the
3 REGISTRATION fee ESTABLISHED PURSUANT TO THIS SUBSECTION (8) to
4 cover the costs associated with complaints filed pursuant to section
5 38-12-1103 (2)(b), and may by rule authorize landlords to charge a
6 resident, as defined in section 38-12-201.5 (11), a portion of the fee, SO
7 LONG AS THE FEE ADJUSTMENT COMPLIES WITH SUBSECTION (8)(c) OF THIS
8 SECTION.

9 (c) A landlord must not charge a home owner or resident more
10 than SEVENTEEN DOLLARS OR half of the fee, WHICHEVER AMOUNT IS
11 LESS.

12 (d) The registration fee for each mobile home must be deposited
13 into the fund.

14 (e) The division shall review the annual registration fee and, if
15 necessary, adjust the annual registration fee through rule-making to
16 ensure it continues to reasonably relate to the cost of administering the
17 program, SO LONG AS THE FEE ADJUSTMENT COMPLIES WITH SUBSECTION
18 (8)(c) OF THIS SECTION.

19 **SECTION 6. Act subject to petition - effective date -**
20 **applicability.** (1) This act takes effect January 1, 2027; except that, if
21 a referendum petition is filed pursuant to section 1 (3) of article V of the
22 state constitution against this act or an item, section, or part of this act
23 within the ninety-day period after final adjournment of the general
24 assembly, then the act, item, section, or part will not take effect unless
25 approved by the people at the general election to be held in November
26 2026 and, in such case, will take effect January 1, 2027 or on the date of
27 the official declaration of the vote thereon by the governor, whichever is

- 1 later.
- 2 (2) This act applies to conduct occurring on or after the applicable
- 3 effective date of this act.